From: **CDN-NDG - Acces documents** acces.documents.cdnndg@montreal.ca
Subject: Re: Request 2026-581 — supplement to my request for reconsideration of October 15, 2026
Date: November 6, 2026 at 10:27 AM
To: Richard Hoge [redacted]
Cc: Julie FARALDO-BOULET julie.faraldo-boulet@montreal.ca

Hello,

Following up on your emails dated October 15 and 20, as well as November 4 regarding our response to access request 2026-581, I inform you that we will not be revising our decision.

Indeed, despite the references mentioned in your emails, no decision-making body has currently approved a bike path redevelopment plan, and therefore no formal decision has been made on this matter.

As mentioned in our response on October 9, 2026, and in accordance with Article 51 of the *Act respecting Access to documents held by public bodies and the Protection of personal information* (CQLR, c. A-2.1), you have 30 days from receiving the reply to request a review of this decision with the Commission d'accès à l'information. Attached, you will find an explanatory note on this matter.

Yours sincerely,

Division du greffe
Arrondissement de Côte-des-Neiges–Notre-Dame-de-Grâce
5160, boul. Décarie, bureau 600
Montréal (Québec) H3X 2H9
montreal.ca/cdn-ndg

De : Richard Hoge [redacted]
Envoyé : 4 novembre 2026 11:13
À : CDN-NDG - Acces documents <acces.documents.cdnndg@montreal.ca>
Cc : Julie FARALDO-BOULET <julie.faraldo-boulet@montreal.ca>
Objet : Request 2026-581 — supplement to my request for reconsideration of October 15, 2026

ATTENTION : Ce message provient de l'externe, merci de faire attention aux liens et aux pièces jointes.

Dear Maître Faraldo-Boulet,

In my message of this morning, a bracketed editorial note was left in by mistake at the end of the second paragraph of point 1 (« [TO CONFIRM BY EAR … DELETE THIS BRACKET] »). Please disregard it; the letter is otherwise as intended. I have since checked the quotation of the borough mayor that precedes it against the webcast of the sitting, and it stands as written.

With my apologies for the slip,

Richard Hoge

Dear Maître Faraldo-Boulet,

It was a pleasure to meet you in person at the borough council meeting on Monday. I would like to repeat my thanks in writing. My requests over these past months have been many and insistent, and you have handled every one of them promptly and with care.

Further to my letter of October 15, 2026 asking you to reconsider the refusal, under sections 39 and 37 of the Act, to release the technical note prepared by Les Services EXP inc. and the analysis of the Service de l'urbanisme et de la mobilité of June 17, 2026, and to my supplement of October 20, I wish to add the decision taken by the borough council at its sitting of November 2, 2026, and the content of the decisional file on which it was taken. Both are public: the file is item 30.02 of the sitting's decisional documents (file 1266880005, pp. 207–212 of the bundle published on the City's site).

1. On section 39. At its sitting of November 2, 2026, the borough council adopted item 30.02, by three votes to two on a recorded vote: « D'offrir, au conseil municipal, la prise en charge de la conception et de la réalisation des travaux pour des ajustements à l'aménagement cyclable sur la rue de Terrebonne, en vertu de l'article 85 alinéa 2 de la Charte de la Ville de Montréal ». The decision summary describes the measure: « retirer, durant la période hivernale, la bande cyclable située dans le même sens que la circulation véhiculaire afin de permettre son utilisation comme bande de stationnement » (p. 3). This is the winter measure whose scenarios the EXP note was commissioned to compare (offer of service released with your decision, pp. 9–13 of the bundle). The council has now decided on it; the condition that ends the exception, « jusqu'à ce que la recommandation ait fait l'objet d'une décision », is met.

At the same sitting, answering a question from the floor on the SUM's evaluation of the scenarios, the borough mayor said: « Par rapport à l'évaluation du SUM sur la piste cyclable, oui, on pourrait le partager avec vous. C'était une évaluation par rapport à une piste cyclable bidirectionnelle … Et cette étude peut être partagée aussi. » (webcast of the sitting, 1:24:52). The head of the borough's administration has thus stated publicly that the analysis you withheld can be shared. [TO CONFIRM BY EAR ON THE CHECK PAGE, CLIP 03, BEFORE SENDING; DELETE THIS BRACKET]

2. On section 37 and section 14. The decision summary states that the technical basis of the measure is still to be established: « Des analyses techniques devront toutefois confirmer la faisabilité opérationnelle et sécuritaire du scénario proposé », including « l'obtention des approbations requises du Service de sécurité incendie de Montréal (SIM) » (pp. 3–4), and « La faisabilité et les impacts de cette mesure devront être validés » (p. 4). No document is attached to the file, and it cites no study, count or measurement. The EXP note and the SUM analysis bear directly on a measure the council has now decided to offer to carry out; the facts, measurements and scenario descriptions they contain are what residents need in order to follow the analyses the file announces.

3. On the calendar. According to the file, City council is to accept the borough's offer in November (p. 5); its next regular sitting is November 16–17, 2026. At the City council sitting of October 19, the member of the executive committee responsible for mobility said that the borough « will be sharing it with us » before a file is presented to City council (recording, 7:19:13). At the same sitting of November 2, the borough council moved its December sitting from December 7 to December 1, 2026 (item 30.03, adopted unanimously); the decision summary of item 30.02 places the borough's signage resolution and the works in December.

The other elements of my letter of October 15 and my supplement of October 20 stand, in particular the request, under section 14, for the release of the facts, measurements, scenario descriptions and technical findings in these documents after extraction of any opinion or recommendation you consider protected. I note again that my request 2026-634 of October 8, 2026, due November 7, covers the final version of the note.

In view of the new calendar, I would be grateful for a reply by Friday, November 13, 2026, so that residents can read the technical basis of the measure before City council decides on the offer.

Yours sincerely,

Richard Hoge
[redacted]

Madam,

Further to my letter of October 15, 2026 asking you to reconsider the refusal, under sections 39 and 37 of the Act, to release the technical note prepared by Les Services EXP inc. and the analysis of the Service de l'urbanisme et de la mobilité of June 17, 2026, I wish to add two statements made at the sitting of the Montréal city council of October 19, 2026, which bear directly on the two grounds invoked. Both are taken from the City's recording of the sitting; a transcript checked against the recording is published at https://github.com/OpenMobilityData/Terrebonne-open-sources/tree/main/2026-10-19-city-council, with the times.

1. On section 39. The exception applies « jusqu'à ce que la recommandation ait fait l'objet d'une décision ». Answering a question from the floor, the councillor for the Loyola district said of the winter measure: « on est très content de cette décision » (recording, 7:10:02). At the borough council of October 6 he had said « we made a decision … based on those slides ». The elected official responsible describes the matter as decided; on his own account, the condition that ends the exception is met.

2. On section 37. The exception is discretionary. Answering a council member at the same sitting, the councillor said: « On n'a aucun problème à partager nos documents parce qu'on s'appuie sur des données probantes aussi » (recording, 41:44). The member of the executive committee responsible for mobility added that the borough « will be sharing it with us », that is with the City, before a file is presented to city council (7:19:13). I ask that the discretion under section 37 be exercised in the sense the councillor himself stated publicly.

The other elements of my letter of October 15 stand, in particular the request, under section 14, for the release of the facts, measurements, scenario descriptions and technical findings in these documents after extraction of any opinion or recommendation you consider protected.

I remain grateful for a reply by November 20, 2026, before the borough council's vote of December 7.

Yours sincerely,

Richard Hoge
[redacted]

[redacted]

On Oct 15, 2026, at 5:25 PM, Richard Hoge [redacted] wrote:

Further to my earlier message, please find attached the two documents it refers to: the borough's press release of October 30, 2023 (French and English captures) and the transcript of the councillor's address of October 6, 2026, with time stamps.

<P-7_communique_2023-10-30_et_couverture_etude_2023.pdf>
<P-3_transcription_allocution_2026-10-06.pdf>

Begin forwarded message:

From: Richard Hoge [redacted]
Subject: Request 2026-581 — Study of rue de Terrebonne — request for reconsideration of the refusals under sections 39 and 37
Date: October 15, 2026 at 5:16:39 PM EDT
To: CDN-NDG - Acces documents <acces.documents.cdnndg@montreal.ca>
Cc: Julie FARALDO-BOULET <julie.faraldo-boulet@montreal.ca>

Madam,

Thank you for your decision of October 9, 2026 on my request 2026-581 and for the 508 pages released with it.

I am writing to ask that you reconsider the refusal to release the technical note prepared by Les Services EXP inc. (preliminary version of September 17 and final version expected October 2, 2026), the analysis of the Service de l'urbanisme et de la mobilité transmitted to the borough on June 17, 2026, and the related documents refused under sections 39 and 37 of the Act, for three reasons.

1. Section 39 is time-limited. It applies "jusqu'à ce que la recommandation ait fait l'objet d'une décision". At the borough council meeting of October 6, 2026, the councillor for the Loyola district presented the measure the note was commissioned to recommend, the removal of one of the two bike lanes on rue de Terrebonne each winter, and said that the elected officials were "now ready to give our orientation to the services" and that this "is what we're going to propose". Councillor Teodoresco's announcement on his official Facebook page, published afterwards, says that "residents will see changes before Christmas 2026". The borough council is expected to vote on the measure on December 7, 2026. If the borough's position is that no decision has yet been made on the recommendation, I would ask you to identify the decision still pending and the body that will make it. In any event, the exception will cease to apply once the council has voted, and I ask that the documents be released at that point at the latest, without a new request.
2. The borough's own practice on this street. On October 30, 2023, the borough published in full the mobility study on rue de Terrebonne prepared by the same firm (351 pages), on the day it announced the scenario it had chosen and more than three months before the borough council (February 5, 2024) and city council (February 19, 2024) approved the project. The press release reads: "Aujourd'hui, l'arrondissement publie les résultats de l'étude et dévoile le scénario choisi pour le réaménagement de la rue de Terrebonne." The 2026 note stands in the same relation to the measure announced on October 6, 2026 as the 2023 study stood to the project announced on October 30, 2023. I ask that the same approach be taken, and, if it is not, that you tell me what distinguishes the two cases: why could the borough publish the firm's study on this street when it announced its chosen scenario in 2023, but not in 2026?
3. Section 14 requires severance. Whatever the position on the recommendations themselves, section 14 requires that the parts of a document not covered by an exception be released. According to the offer of service released with your decision (pp. 9–13 of the bundle), the EXP note was to compare winter layout scenarios, including closure during snow-clearing operations only, and to analyse geometric and operational constraints. The SUM analysis, of which only the borough's own summary was released, rests on technical findings. I ask that the counts, measurements, inventories, scenario descriptions and technical findings in these documents be released after extraction of any opinion or recommendation.

Because the council is to vote on December 7, 2026, I would be grateful for a reply before that meeting and, if possible, by November 20, so that residents can read the technical basis of the measure before the council votes on the matter. I note that my request 2026-634 of October 8, 2026, due November 7, covers the final version of the note and the material presented on October 6.

Yours sincerely,

Richard Hoge
[redacted]

On Oct 9, 2026, at 4:00 PM, CDN-NDG - Acces documents <acces.documents.cdnndg@montreal.ca> wrote:

Richard Hoge
[redacted]

Subject : Access to documents
Study of rue de Terrebonne

Our file : 2026-581

Hello,

In reply to your request of September 11th, 2026, I am enclosing the following documents: e-mails, tender documents, a framework agreement (entente-cadre), a «dossier decisionnel», presentations, an «offre de service» and counting tables.

Please find below, **in blue**, the responses to each of the requested items.

A. Origin and purpose of the Study

A1. *Documents that initiated, justified or authorized commissioning the Study, including briefing notes, internal memoranda, statements of need, budget requests, capital program entries, and any request or direction from elected officials or their offices to undertake a study.*

The attached documents include e-mails.

It should be pointed out that, in accordance with sections 53, 54, 56, 57 and 59 of the *Act respecting Access to documents held by public bodies and the Protection of personal information* (CQLR, c. A-2.1), hereinafter referred to as "the Act", all information of a personal nature was omitted to ensure confidentiality.

A2. *Any application for external funding of the Study and related correspondence with the funding body.*

No documents were found by the borough.

A3. *Documents setting out the questions the Study was to answer; the options or configurations to be evaluated or excluded, including maintaining the current configuration or returning to a previous one; and any criteria, objectives or targets against which options were to be assessed.*

The attached documents include e-mails and the official service request.

It should be pointed out that, in accordance with sections 53, 54, 56, 57 and 59 of the *Act respecting Access to documents held by public bodies and the Protection of personal information* (CQLR, c. A-2.1), hereinafter referred to as "the Act", all information of a personal nature was omitted to ensure confidentiality.

We regret to inform you that we cannot release certain preliminary documents and studies, in accordance with sections 9 and 39 of

the*Act respecting Access to documents held by public bodies and the Protection of personal information* (CQLR, c. A-2.1). A copy of these sections is attached.

Certain information was omitted and access to certain documents was denied on the grounds that they constitute "a recommendation or opinion presented less than ten years earlier, and obtained from one of its members, a member of its personnel, a member of another public body or a member of the personnel of the other public body, in the discharge of his duties," pursuant to section 37 of the Act, attached.

Certain information was omitted and access to certain documents was denied on the grounds that they constitute «a study prepared in connection with a recommendation made within a decision-making process until a decision is made on the recommendation» pursuant to section 39 of the Act, attached.

Some documents are drafts or preliminary notes. They are documents to which Chapter II of the Act does not apply by virtue of the second paragraph of section 9 of the Act, attached.

B. Procurement and contract

B1. *If the Study was the subject of its own solicitation: the call for tenders, invitation letter, specifications or devis, addenda, questions and answers, and the list of firms invited.*

No solicitation was made. The borough used a framework agreement.

B2. *If instead the Study was ordered under a framework agreement (entente-cadre) — in particular the agreements for engineering study and design services awarded on June 9, 2025 by resolution CA25 170126 under public tender 59-25-ET-01 (file 1255652003), or any other framework agreement— the Borough's request for an offer of services, the consultant's offer of services, the service order or purchase order issued, and the specifications or devis governing the mandate. If the Study was awarded by mutual agreement, the documents justifying that method.*

The attached documents include tender documents, the «dossier décisionnel» and the resolution.

It should be pointed out that, in accordance with sections 53, 54, 56, 57 and 59 of the *Act respecting Access to documents held by public bodies and the Protection of personal information* (CQLR, c. A-2.1), hereinafter referred to as "the Act", all information of a personal nature was omitted to ensure confidentiality.

Certain information contained in these documents was omitted and

Certain information contained in these documents was omitted and access to certain documents was denied pursuant to section 23 of the Act, attached, which provides that « No public body may release industrial secrets of a third person or confidential industrial, financial, commercial, scientific, technical or union information supplied by a third person and ordinarily treated by a third person as confidential, without his consent. ».

Certain information contained in these documents was also omitted, as it is subject to the protection afforded by section 24 of the Act, attached, and consequently may not be released without their owner's consent.

B3. *The bid opening summary, including the names of bidders and prices submitted.*

The attached documents include the «offre de service».

It should be pointed out that, in accordance with sections 53, 54, 56, 57 and 59 of the *Act respecting Access to documents held by public bodies and the Protection of personal information* (CQLR, c. A-2.1), hereinafter referred to as "the Act", all information of a personal nature was omitted to ensure confidentiality.

B4. *The evaluation grid and the selection committee report with scores. Committee members' names may be redacted, but I ask that their titles be left visible.*

There was no selection committee or evaluation grid, as the mandate was given via a framework agreement.

B5. *The decision summary (sommaire décisionnel) and the council resolution awarding the mandate, if any. If the mandate was authorized under delegated authority, the written decision, the purchase order, and the entry for it in the monthly report of delegated decisions tabled at council.*

The attached documents include the purchase orders (bons de commande).

B6. *The contract and the successful offer of services, including scope, deliverables, schedule and fees. If parts are protected under sections 23 or 24, I ask that those parts be severed and the rest released.*

Please refer to the «offre de service» at *B3.*

B7. *Amendments, changes of scope or schedule, additional fees, invoices and records of payment.*

The attached documents include e-mails.

It should be pointed out that, in accordance with sections 53, 54, 56, 57 and 59 of the *Act respecting Access to documents held by public bodies and the Protection of personal information* (CQLR, c. A-2.1), hereinafter referred to as "the Act", all information of a personal nature was omitted to ensure confidentiality.

Certain information was omitted on the grounds that they constitute "a recommendation or opinion presented less than ten years earlier, and obtained from one of its members, a member of its personnel, a member of another public body or a member of the personnel of the other public body, in the discharge of his duties," pursuant to section 37 of the Act, attached.

Certain information was omitted on the grounds that they constitute « a study prepared in connection with a recommendation made within a decision-making process until a decision is made on the recommendation» pursuant to section 39 of the Act, attached.

C. Methodology and execution

C1. *Documents from the start-up meeting (agenda, presentation, minutes, attendance) and the approved work plan.*

The attached documents include the «formulaire de réunion de démarrage» .

Access to certain documents was denied on the grounds that they constitute "a recommendation or opinion presented less than ten years earlier, and obtained from one of its members, a member of its personnel, a member of another public body or a member of the personnel of the other public body, in the discharge of his duties," pursuant to section 37 of the Act, attached.

Access to certain documents was denied on the grounds that they constitute « a study prepared in connection with a recommendation made within a decision-making process until a decision is made on the recommendation» pursuant to section 39 of the Act, attached.

C2. *Instructions, directives or information provided by the Borough to the consultant concerning scope, methodology, data collection (including locations, dates, seasons and hours of counts), options to be considered or excluded, public consultation, or the presentation of results.*

The attached documents include presentations.

Some documents are drafts or preliminary notes. They are documents to which Chapter II of the Act does not apply by virtue of the second

to which Chapter II of the Act does not apply by virtue of the second paragraph of section 9 of the Act, attached.

C3. *Agendas, minutes, attendance lists and presentations for follow-up meetings between the Borough and the consultant.*

No documents were found by the borough.

C4. *Raw and processed data collected or used for the Study, including traffic, cyclist and pedestrian counts, parking inventories and occupancy surveys, collision data and survey results, in their native electronic format.*

The attached documents include counting tables.

D. Deliverables and review

D1. *All deliverables transmitted to the Borough, including interim and preliminary versions, together with the transmittal correspondence showing the date each was received.*

The attached documents include e-mails.

It should be pointed out that, in accordance with sections 53, 54, 56, 57 and 59 of the *Act respecting Access to documents held by public bodies and the Protection of personal information* (CQLR, c. A-2.1), hereinafter referred to as "the Act", all information of a personal nature was omitted to ensure confidentiality.

Access to certain documents was denied on the grounds that they constitute "a recommendation or opinion presented less than ten years earlier, and obtained from one of its members, a member of its personnel, a member of another public body or a member of the personnel of the other public body, in the discharge of his duties," pursuant to section 37 of the Act, attached.

Access to certain documents was denied on the grounds that they constitute « a study prepared in connection with a recommendation made within a decision-making process until a decision is made on the recommendation» pursuant to section 39 of the Act, attached.

Some documents are drafts or preliminary notes. They are documents to which Chapter II of the Act does not apply by virtue of the second paragraph of section 9 of the Act, attached.

D2. *Comments, markups or requests for changes sent to the consultant by Borough employees or elected officials concerning deliverables, findings, conclusions or recommendations, and the consultant's replies.*

No attached documents.

Access to certain documents was denied on the grounds that they constitute "a recommendation or opinion presented less than ten years earlier, and obtained from one of its members, a member of its personnel, a member of another public body or a member of the personnel of the other public body, in the discharge of his duties," pursuant to section 37 of the Act, attached.

Access to certain documents was denied on the grounds that they constitute «a study prepared in connection with a recommendation made within a decision-making process until a decision is made on the recommendation» pursuant to section 39 of the Act, attached.

Some documents are drafts or preliminary notes. They are documents to which Chapter II of the Act does not apply by virtue of the second paragraph of section 9 of the Act, attached.

D3. *The final report and its annexes, if received at the date of this request.*

No attached documents. Please see *D1.*

Access to certain documents was denied on the grounds that they constitute "a recommendation or opinion presented less than ten years earlier, and obtained from one of its members, a member of its personnel, a member of another public body or a member of the personnel of the other public body, in the discharge of his duties," pursuant to section 37 of the Act, attached.

Access to certain documents was denied on the grounds that they constitute «a study prepared in connection with a recommendation made within a decision-making process until a decision is made on the recommendation» pursuant to section 39 of the Act, attached.

E. Internal handling and communications

E1. *Correspondence among Borough employees, and between employees and elected officials or their offices, concerning the Study's objectives, methodology, anticipated or preferred outcomes, findings or recommendations.*

Please see e-mails at *A1, A3, C2* and *D1.*

E2. *Communication, consultation or engagement plans, key messages, questions-and-answers documents, and draft public announcements concerning the Study or its results.*

No documents were found by the borough

No documents were found by the borough.

E3. *Documents concerning the design, budgeting, scheduling or implementation of any change to the configuration of rue de Terrebonne (traffic direction, lanes, parking or cycling facilities) dated before the Borough received the final report.*

No documents were found by the borough.

In accordance with article 51 of the Act, you may apply to the Commission d'accès à l'information for a review of the decision. Please refer to the attached notice of recourse.

Sincerely,

Julie Faraldo-Boulet
La secrétaire d'arrondissement

JFB/cl
Encl. (8)

<Outlook-fegru5f3.png>

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Division du greffe
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